

PUBLIC SUBMISSION

As of: March 21, 2025
Received: March 15, 2025
Status: [REDACTED]
Tracking No. m8b-1010-h755
Comments Due: March 15, 2025
Submission Type: API

Docket: NSF_FRDOC_0001
Recently Posted NSF Rules and Notices.

Comment On: NSF_FRDOC_0001-3479
Request for Information: Development of an Artificial Intelligence Action Plan

Document: NSF_FRDOC_0001-DRAFT-7346
Comment on FR Doc # 2025-02305

Submitter Information

Name: Anonymous Anonymous
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General Comment

See attached file(s)

Attachments

Re National Science Foundation s Request for Information on the Development of an Artificial Intelligence Action Plan

March 14, 2025

From:
Taylor B.
Animator

Re: National Science Foundation's Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

I am a freelance animator studying animation and graphic design. People in creative professions such as animation, illustration and graphic design practice their craft for years. We are free to share and profit from our own work, and our work is protected under copyright laws. But recent efforts by Big Tech companies are putting American creators' jobs in danger.

Big Tech companies such as OpenAI (Microsoft) and Google's AI systems are a threat to creative industries such as the one I'm in. They threaten to destroy thousands of American small businesses with their demands to create special carve outs in copyright law.

AI systems can only be produced by first training on work made by people. The unique work of hundreds of thousands of other everyday American creators like me are being taken and fed into these AI systems without our consent or compensation. They use our work by stealing it and reassembling it, and then they sell it back to clients, which cuts us out of the marketplace. Additionally, we do not gain any compensation from the usage of our work.

Now these Big Tech companies are asking this administration to create exceptions and loopholes to make this practice of stealing American creators' copyrighted work legal precedent. This precedent could put thousands of American creative jobs at risk, from company work to freelance creators. These companies are suggesting that if a machine ingests and reproduces copyrighted work, it is somehow suddenly "fair use", even though it uses our work without permission.

They seem to believe that anything and everything on the internet – regardless of who owns it – should be theirs for the taking. They claim that if this administration does not allow them to rewrite the law in this way, it will stifle American innovation.

Instead, it will have the opposite effect. The purpose of American copyright law is to protect the incentive to create and innovate.

If we the American people do not own our creations, and everything we put online will be stolen by Big Tech giants, what will be the incentive to create? If everyday Americans create a new innovative piece of computer code, a new visual design, or a new piece of music only to have it

immediately stolen by Google and Microsoft, why bother creating it in the first place? How will we possibly make a living doing these things?

Since its creation, America has taken pride in its artists and creatives. If Big Tech companies succeed in creating copyright exemptions for AI systems to scrape our work, there will be less of these creatives, as artists will not want to share their work with the world if they're afraid it will be stolen from them without compensation, credit, or consent.

Want to protect American innovation? Protect American creators. **Do not create new copyright exemptions that allow Big Tech companies to exploit and steal from creators and everyday Americans without permission, compensation, or transparency.**

This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

- First, the government should ensure that creators and everyday Americans give effective **consent**, so that we can decide when and where our work is used by AI systems.
- Second, the AI Action Plan should encourage a robust **licensing** marketplace, so that the incentive to create for small businesses is preserved. Our work has immense economic value, so the value generated by that work should accrue to the original creators, not just Big Tech.
- Finally, the AI Action Plan should require **transparency** from Big Tech companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated.

I am not anti-technology or anti-AI. I believe there are many other ways AI can benefit this country. But we should not sacrifice the hard work of hundreds of thousands of Americans and give it away to Big Tech by rewriting copyright law.

Thank you for giving the opportunity to comment on these important issues.